

24STCV02014 24STCV02014

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MOTION TO COMPEL FURTHER

The Court

tenders the following tentative decision in the matter Bryhana Monegain v. Anschutz Entertainment Group, Inc., et al., Los Angeles County Superior Court case number 24STCV02014, set for hearing on August 19, 2026. G-Unit Touring, Inc. (Defendant) moves for an order compelling further response to its requests for admissions, set one (RFAs), propounded upon Bryhana Monegain (Plaintiff). Defendant also requests a total \$1,219 in monetary sanctions. Plaintiff opposes the motion. Defendant's motion is granted in part. The Court awards \$920 in sanctions.

A.

Legal Standard

A party may move for an order compelling further responses to requests for admissions if it shows that an answer is evasive or incomplete or an objection is meritless. (Id., § 2033.290, subd. (a).) "For discovery purposes, information is relevant if it 'might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement.' [Citation]. Admissibility is not the test and information, unless privileged, is discoverable if it might reasonably lead to admissible evidence. [Citation] These rules are applied liberally in favor of discovery." (Gonzales v. Superior Court (1995) 33 Cal.App.4th 1539, 1546.) "If the court determines that the answer or production sought is subject to discovery, it shall order that the answer be given, or the production be made on the resumption of the deposition." (Code Civ. Proc., § 2025.480, subd. (i).)

B. Discussion

Defendant seeks further responses

to RFAs 18 and 19, which ask Plaintiff to admit or deny that she suffered from anxiety or depression prior to August 30, 2023. These RFAs were initially propounded on November 24, 2025. (Bowen Decl. ¶ 3, Ex. A.) After receiving multiple extensions, Plaintiff provided initial responses objecting to the terms anxiety and depression as ambiguous on March 18, 2026. (Id. ¶ 4, Ex. C.) Defendant then filed the present motion on May 26. Plaintiff served further responses on August 6, providing substantive denials along with explanation. (Hultin Decl. ¶ 2, Ex. 1.) Thus, further responses are no longer warranted.

However, sanctions are warranted

pursuant to section 2033.290, subdivision (d), as Plaintiff's initial responses were deficient. She has thus unsuccessfully opposed Defendant's motion to compel further responses. Defendant's counsel alleges an hourly rate of \$230. (Bowen Decl. ¶ 6.) Counsel further testifies that it took him 3.8 hours to review discovery and draft the present motion and would take a further 1.5 hours to review the opposition, draft a reply, and attend the hearing on this matter. (Ibid.) Because of the simplicity of the present motion and its coverage of only two RFAs, the Court only credits counsel with 2.5 hours for drafting the motion and 1.5 hours for drafting the reply and attending the hearing on this matter. Accordingly, the Court awards Defendant sanctions in the amount of \$920 ($[\$230 \text{ per hour}] \times [4 \text{ hours}] = \920), payable by Plaintiff's counsel.

C. Conclusion

The Court grants

Defendant's motion in part. Plaintiff is not required to provide further responses but her counsel is sanctioned for \$920, payable to Defendant within 30 days..